

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 10, 2026
8:30 a.m./1:30 p.m.

2. JENNIFER DAIGNAULT-KREBS V. TODD KREBS

25FL0807

On June 22, 2026, Petitioner filed a Request for Order (RFO) seeking bifurcation of the issue of marital status. It was served the same day along with all required documents.

Respondent filed and served his Responsive Declaration to Request for Order on August 26, 2026.

Petitioner is requesting an order to bifurcate the issue of marital status, terminate the marriage, and restore both parties to the status of single persons. Respondent consents to terminating the marital status though he opposes the date of separation listed in Petitioner's moving papers.

Regarding the date of separation, there has been no request for the court to determine the date of separation. As such, the court is not ruling on that issue.

Turning to bifurcation, "[t]he court may separately try one or more issues before the trial of the other issues if resolution of the bifurcated issue is likely to simplify the determination of the other issues." Cal. Rules of Ct. Rule 5.390(c). The party requesting bifurcation must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). Submission of a completed FL-315 is also required. Cal. Rule Ct. 5.390(a).

Here, Petitioner failed to file the required FL-315. Nevertheless, Respondent is stipulating to the bifurcation and Respondent did complete and file an FL-315. The only retirement plan appears to be a 401(k) which does not require joinder. Therefore, the court finds good cause to grant the bifurcation. The parties are ordered to appear for the hearing.

TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.